



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

MAY 9 1988

400 Seventh Street, S.W.
Washington, D.C. 20590

**DOT-E 7969
(THIRD REVISION)**

1. Crosby and Overton, Incorporated, Long Beach, California, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer for transportation certain waste hazardous materials described in paragraph 3 below in packagings described in paragraph 7 below in commerce subject to the requirements specified herein. This exemption authorizes use of a non-DOT specification cargo tank, and provides no relief from any regulation other than specifically stated.

2. BASIS. This exemption is based on Crosby and Overton, Incorporated's application dated September 25, 1987, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon and supplemental letter dated March 16, 1988.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquid and semi-solid waste material, including mixtures, compatible with the packaging, containing flammable liquids or corrosives poison B materials, or combinations thereof, classed as flammable liquid, corrosive material or poison B as appropriate.

4. PROPER SHIPPING NAME (49 CFR 172.101). Specific commodity name or generic description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.119(a) and (m), 173.245(a), 173.346(a), 178.340-7, 178.342-5, 178.343-5.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification single compartment cargo tank designed and constructed in accordance with Section VIII of the ASME Code for an internal pressure of 40 psig and full vacuum. The cargo tank must be frame supported, circular in cross-section, and in full compliance with DOT Specification MC-307 (49 CFR 178.342), MC-312 (49 CFR 178.343) except as follows:

a. Circumferential reinforcement must comply with 49 CFR 178.340-7 except the maximum unreinforced portion of the shell may exceed 60-inches provided thickness and tensile strength of the shell material in combination with the frame and circumferential reinforcement produces structural integrity at least equal to that prescribed in 49 CFR 178.340-4(b).

b. In place of internal valves prescribed in 49 CFR 178.342-5(a) and 178.343-5(b), each tank may be equipped with on 6-inch maximum diameter bottom outlet with gate, plug or butterfly valve and one optional 4-inch maximum diameter bottom inlet with gate, plug or butterfly valve located near the rear of tank in accordance with Royalvac Incorporated's Drawing 10010 submitted with the letter dated March 31, 1978, as modified by Crosby and Overton, Incorporated's drawing R5050-1 dated April 14, 1982, on file with the Office of Hazardous Materials Transportation (OHMT). Each bottom outlet and each bottom inlet must be equipped with an additional shut-off valve, or a blank flange or a sealing cap.

c. The metal identification plate and the manufacturer's certificate must not be marked to indicate compliance with DOT MC-307 or MC-312 specifications but instead must bear reference to DOT-E 7969.

d. Tanks that are to be used in transporting flammable waste materials must be equipped with a spring loaded relief valve.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Each cargo tank must be reinspected and retested once every two years in accordance with 49 CFR 177.824 as prescribed for DOT Specification MC-307 or MC-312 cargo tanks, as appropriate, at one and one-half times the sum of the design pressure plus the static head.

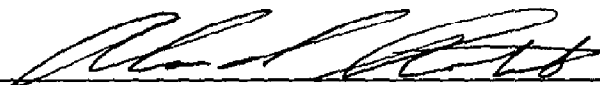
c. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 7969."

d. No new construction is authorized.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. April 15, 1989.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

MAY 9 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA